

23AHCV01193 23AHCV01193

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-06-24

Motion: PLAINTIFFS' MOTIONS TO COMPEL DEPOSITIONS OF DEFENDANT'S EMPLOYEES

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C06%2F24%2F2026

Source SHA-256: 88b47d012344d3dc25d18712584ba239ad3159846d19e1296b299d095c3d9321

Case Number: 23AHCV01193 Hearing Date: June 24, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST

DISTRICT

SUMAYYA

AASI, et al.,

Plaintiff(s),

vs.

AMERICAN

HONDA MOTOR CO., INC.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23AHCv01193

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTIONS TO COMPEL DEPOSITIONS OF DEFENDANT'S

EMPLOYEES

Dept.

3

8:30

a.m.

June 24,

2026

)

Introduction

On January 26, January 30, and February

3, 2026, plaintiffs Sumayya Aasi and Huma Aasi (collectively, "Plaintiffs")

filed four motions to compel defendant American Honda Motor Co., Inc.

("Defendant") to produce its employees for deposition. The employees identified

are: Joseph Russell, Benjamin Losey, Adam Ritter, and Kevin Hawkins. Plaintiffs

also request the Court impose sanctions against Defendant in the amount of

\$2,560 for each motion.

Kevin Hawkins

Plaintiffs argue the deposition of

Kevin Hawkins is necessary because he is "[Defendant]'s engineering leader in [sic]

new technology and quality assurance department." (Motion, p. 9.) Plaintiffs

wish to depose Mr. Hawkins regarding his role in this department and his

knowledge of the Collision Mitigation Braking System ("CMBS") equipped in their

2022 Honda Accord Hybrid ("Subject Vehicle") to support their express warranty

claims.

Plaintiffs claim that they brought the

Subject Vehicle for repair on at least four occasions for issues with the CMBS

"randomly braking when no object or vehicle was in front." (Motion, p. 9.) Each

time, the repair technicians were unable to duplicate the braking event and no

repairs were performed. Therefore, Plaintiffs seek to ask Mr. Hawkins "whether

these unverified/non-warranty complaints would be considered as a repair presentation for purposes of compliance with the Song-Beverly Act, as well as Defendant's knowledge of whether its diagnostic process for customer complaints of [CMBS] was effective or if Defendant had knowledge that its authorized repair facilities were not successful at duplicating customer complaints of [CMBS] activation with no obstructions in the roadway, such as Plaintiffs' complaints with the Subject Vehicle." (Motion, p. 9.) This information, according to Plaintiffs, will support their claim for a civil penalty if it is determined that Defendant knew that "an overwhelming amount of unverified complaints regarding the Honda Sensing system's CMBS is difficult or impossible to duplicate by its repairing technicians" and that Defendant willfully turned a blind eye to an abnormally high amount of unverified complaints to the [CMBS], and refuse to acknowledge each presentation as a warranty repair in order to avoid its obligations to provide restitution under the Song-Beverly Act." (Motion, p. 10.)

In opposition, Defendant argues that

Mr. Hawkins is not an employee and that the deposition notice was deficient without being accompanied by a deposition subpoena. (Opp., p. 3.) The only evidence Defendant presents regarding Mr. Hawkin's employment status is the declaration of defense counsel, Richard L. Stuhlbarg. However, this declaration

is insufficient because it does not include any facts establishing that Mr.

Stuhlbarg has the personal knowledge necessary to make such an assertion.

Accordingly, the motion to compel the

deposition of Mr. Hawkins is GRANTED.

Joseph Russell and Benjamin Losey

Plaintiffs seek to depose Joseph

Russell and Benjamin Losey as Defendant's employees who, like Mr. Hawkins, are

familiar with the Subject Vehicle's CMBS. Plaintiffs explain that Mr. Russell

is a "Senior Quality Assurance manager" while Mr. Losey is a "service quality

specialist" and their depositions are needed for the same reasons as those

identified above with respect to Mr. Hawkins, i.e., to determine whether

Defendant had knowledge that its diagnostic process for complaints about the

CMBS was effective and if it ignored an abnormally high amount of unverified

complaints about the CMBS to avoid its obligations under the Song-Beverly Act.

Defendant opposes the motions based on

the unsubstantiated argument that neither Mr. Russell nor Mr. Losey are

employees. Again, the only evidence provided in support of this claim is

defense counsel's declaration, which lacks foundation. Accordingly, the motions

to compel the depositions of Mr. Russell and Mr. Losey are GRANTED.

Adam Ritter

Like the

other three deponents, Adam Ritter purportedly has knowledge about the Subject

Vehicle's CMBS. Mr. Ritter apparently oversees Defendant's quality assurance

department and Plaintiffs seek to depose him on the same issues identified

above.

Defendant

argues that the motion should be denied because Mr. Ritter is not a California

resident and is not obligated to appear for a deposition. This argument is

specious because Code of Civil Procedure section 2026.010 allows an employee

witness's deposition to take place at a place that is within 75 miles of the

residence or a business office of the deponent.

Accordingly,

the motion to compel the deposition of Mr. Ritter is GRANTED.

Sanctions

Plaintiffs

request sanctions in the amount of \$2,560 for each motion. This amount is

excessive given that the moving papers are substantively similar with only

minor changes made to the descriptions of each employee's roles. Also, three out

of the four of the reply briefs are nearly identical. Therefore, Sanctions are

imposed against Defendant and counsel of record, jointly and severally, in the

reduced amount of \$1,740, consisting of 3 hours at an hourly rate of \$500 and \$240 in filing fees.

Conclusion

Defendant is

ordered to produce Mr. Losey, Mr. Russell, Mr. Hawkins, and Mr. Ritter for their depositions within the next 30 days. Sanctions are also to be paid within 30 days.

Dated

this 24th

day of June 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating

intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit

on the tentative and elect not to appear at the hearing, the opposing party may

nevertheless appear at the hearing and argue the matter. Unless you receive a

submission from all other parties in the matter, you should assume that others

might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.